

FEDERAL MARITIME COMMISSION

ONE BANANA NORTH AMERICA CORP., *Complainant*

v.

HAPAG-LLOYD AG AND HAPAG-LLOYD (AMERICA) LLC,
Respondents.

DOCKET NO. 22-03

Served: January 24, 2022

NOTICE OF FILING OF COMPLAINT AND ASSIGNMENT

Notice is given that a complaint has been filed with the Federal Maritime Commission (Commission) by One Banana North America Corp, hereinafter “Complainant,” against Hapag-Lloyd AG and Hapag-Lloyd (America) LLC, hereinafter “Respondents.” Complainant is a Florida corporation that ships fresh bananas from Central and South America to the United States, where it sells them to various wholesalers and retailers. Complainant alleges that Respondent Hapag Lloyd AG is a German company, Respondent Hapag-Lloyd (America) LLC is a Delaware company, and that Respondents are common carriers.

Complainant alleges that Respondents violated 46 U.S.C § 41102(c), 46 C.F.R. §§545.4 and 545.5, and 46 U.S.C. § 41104(a)(10) with regard to the movement of refrigerated containers. The full text of the complaint can be found in the Commission’s Electronic Reading Room at <https://www2.fmc.gov/readingroom/proceeding/22-03/>.

This proceeding has been assigned to Office of Administrative Law Judges. The initial decision of the presiding office in this proceeding shall be issued by January 24, 2023, and the final decision of the Commission shall be issued by August 7, 2023.

William Cody
Secretary